

English (United States)



Updated: January 16, 2026

Europe Terms of Use

(Previous version)

Thank you for using OpenAI!

These Terms of Use apply if you reside in the European Economic Area (EEA), Switzerland, or UK. If you live outside of the EEA, Switzerland, or UK, these Terms of Use apply to you.

These Terms of Use (“Terms”) apply to your use of ChatGPT, DALL·E, and OpenAI’s other services for individuals, along with any associated software applications, technology and websites (“Services”), including personal, non-commercial use of our Services by consumers. You form a contract with us when you confirm that you accept these Terms or when you otherwise use the Services.

Our Business Terms govern use of ChatGPT Enterprise, our APIs, and our other services for businesses and developers.

We use cookies

We use cookies to help this site function, understand service usage, and support marketing efforts. Visit [Manage Cookies](#) to change preferences anytime. View our [Cookie Policy](#) for more info.

Our [Privacy Policy](#) explains how we collect and use personal information. Although it does not cover all of these Terms, it is an important document that you should read.

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Who we are

OpenAI is an AI research and deployment company. Our mission is to ensure that artificial general intelligence benefits all of humanity. For more information about OpenAI, please visit <https://openai.com/about>. Our Services are provided to you by:

- *OpenAI Ireland Ltd*, a company incorporated in the Republic of Ireland with its registered office at 1st Floor, The Liffey Trust Centre, 117-126 Sheriff Street Upper, Dublin 1, D01 YC43, Ireland and company number 737350, if you are resident in the EEA or Switzerland.
- *OpenAI OpCo, LLC*, a Delaware company with its registered office at 1455 3rd Street, San Francisco, CA 94158, United States and company number 7063675, if you are resident in the UK.

Additional Service-specific Terms

Depending on the specific Service or features you use, additional Service-specific terms and policies may apply to your use of our Services. The key ones to be aware of, and which form part of these Terms, are described below:

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- [Usage Policies](#): these policies explain how you may use our Services and Content,
- [Our Cookie Terms](#): these terms apply when you use certain Services or features;

- Service Credit Terms: these terms govern the purchase and use of service credits on our Services; and
- Brand Guidelines: these guidelines explain how you may use our name and logo.

For more information on our moderation and enforcement processes, see our [Transparency & Content Moderation page](#).

Registration and access

Minimum age. You must be at least 13 years old or the minimum age required in your country to consent to use the Services. If you are under 18, you must have your parent or legal guardian's permission to use the Services and ask them to read these Terms with you.

Registration. You must provide accurate and complete information to register for an account to use our Services. You may not share your account credentials or make your account available to anyone else and are responsible for all activities that occur under your account. If you create an account or use the Services on behalf of another person or entity, you must have the authority to accept these Terms on their behalf.

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Using our Services

What you can do. Subject to your compliance with these Terms, you may access and use our

specific terms and policies listed above.

What you cannot do. You may not use our Services for any illegal, harmful, or abusive activity. For example, you are prohibited from:

- Using our Services in a way that infringes, misappropriates or violates anyone's rights.
- Misusing our reporting or appeals processes, including providing manifestly unfounded submissions.
- Modifying, copying, leasing, selling or distributing any of our Services.
- Attempting to or assisting anyone to reverse engineer, decompile or discover the source code or underlying components of our Services, including our models, algorithms, or systems (except to the extent this restriction is prohibited by applicable law).
- Automatically or programmatically extracting data or Output (defined below).
- Representing that Output was human-generated when it was not.
- Interfering with or disrupting our Services, including circumventing any rate limits or restrictions or bypassing any protective measures or safety mitigations we put on our Services.

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- Using Output to develop models that compete with OpenAI.

Software. Our Services may allow you to download software, such as mobile applications, which may update automatically

is governed by its own licences that we've made available to you.

Corporate domains. If you create an account using an email address owned by an organisation (for example, your employer), that account may be added to the organisation's business account with us, in which case we will provide notice to you so that you can help facilitate the transfer of your account (unless your organisation has already provided notice to you that it may monitor and control your account). Once your account is transferred, the organisation's administrator will be able to control your account, including being able to access Content (defined below) and restrict or remove your access to the account.

Third party Services. Our services may include third party software, products, or services, ("Third Party Services") and some parts of our Services, like our browse feature, may include output from those services ("Third Party Output"). Third Party Services and Third Party Output are subject to their own terms, and we are not responsible for them.

Feedback. We appreciate your feedback about our Services, but you agree that we may use it to provide, maintain, develop, and improve our Services, without compensation to you.

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Content

Your content. You may provide input to the Services ("Input"), and receive output from the Services based on the Input ("Output"). Input

it does not violate any applicable law or these Terms. You represent and warrant that you have all rights, licences, and permissions needed to provide Input to our Services.

Ownership of content. As between you and OpenAI, and to the extent permitted by applicable law, you (a) retain your ownership rights in Input and (b) own the Output. We hereby assign to you all our right, title, and interest, if any, in and to Output.

Similarity of content. Due to the nature of our Services and artificial intelligence generally, Output may not be unique and other users may receive similar output from our Services. Our assignment above does not extend to other users' output or any Third Party Output.

Our use of content. We can use your Content worldwide to provide, maintain, develop, and improve our Services, comply with applicable law, enforce our terms and policies and keep our Services safe. If you're using ChatGPT through Apple's integrations, see [this Help Center article](#) for how we handle your Content.

Content moderation. We use automated systems and human review to identify and address content that violates our Terms, including our Usage Policies. If we become aware of violations, we may remove or restrict content, limit your access to features, or suspend or terminate your account. For more details on our content moderation process and complaint procedures, see our [Transparency & Content Moderation page](#).

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Content to train our models, you have the option to opt out by updating your account settings. Further information can be found in [this article](#). Please note that in some cases this may limit the ability of our Services to better address your specific use case.

Accuracy. Artificial intelligence and machine learning are rapidly evolving fields of study. We are constantly working to improve our Services to make them more accurate, reliable, safe, and beneficial. Given the probabilistic nature of machine learning, use of our Services may in some situations result in Output that does not accurately reflect real people, places, or facts.

When you use our Services you understand and agree:

- Output may not always be accurate. You should not rely on Output from our Services as a sole source of truth or factual information, or as a substitute for professional advice.
- You must evaluate Output for accuracy and appropriateness for your use case, including using human review as appropriate, before using or sharing Output from the Services.
- You must not use any Output relating to a person for any purpose that could have a

legal or material impact on that person, such as making credit, educational, employment, housing, insurance, legal, medical, or other important decisions about them.

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not represent OpenAI's views. If Output references any third party products or services, it doesn't mean the third party endorses or is affiliated with OpenAI.

Our IP rights

We and our affiliates own all rights, title, and interest in and to the Services. You may only use our name and logo in accordance with our [Brand Guidelines](#).

Paid accounts

Paid subscriptions. Some of our Services allow you to purchase paid subscriptions to benefit from enhanced features and functionalities (the “**Benefits**”). The exact nature of the Benefits differs between Services and will be made clear to you before purchase. You can manage your paid subscription from your account settings.

Fees: All charges, including subscription fees, will be made clear to you before purchase.

Billing. If you sign-up for a paid subscription or purchase any Services, you will provide complete and accurate billing information,

including a valid payment method. For paid subscriptions, we will automatically charge your payment method on each agreed-upon periodic renewal until you cancel. If your payment cannot be completed, we may downgrade your account or suspend your access to our Services until payment is received.

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in advance by purchasing service credits.
All service credits are subject to our [Service credit terms](#).

Cooling off period. You are entitled to cancel your purchase and request a refund without stating the reason during the 14 days following the date of your purchase (the “**Cooling Off Period**”). The refund will cover the relevant subscription fee prorated from the date you request cancellation to the end of the relevant subscription period you have paid for. To cancel and request a refund please [contact Support](#) or fill out and send us the [model withdrawal form](#), or alternatively you may complete the model withdrawal form as described under ***Termination and Suspension*** below.

Cancellation. Following the Cooling Off Period, you can [cancel](#) your paid subscription at any time by updating your account settings. You will not be charged after you cancel your paid subscription. You will continue to have access to the Benefits until the end of the subscription period you have paid for, at which point your cancellation will become effective. Unless we specify otherwise, you will not receive a refund or service credit for any days between the day you cancel and the last day of the subscription period you have paid for.

Changes. We may change our prices from time to time. If we increase our subscription prices, we will give you at least 30 days’ notice and any price increase will take effect on your next renewal so that you can cancel if you do not agree to the price increase.

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Termination and suspension

Your rights. You can stop using our Services and end your relationship with OpenAI at any time by simply closing your account and stopping your use of the Services. Instructions for how to do this are available [here](#).

EEA consumer withdrawal right. If you are an EEA-based consumer, you can close your account and withdraw from these Terms within 14 days of accepting them by [contacting Support](#) or filling out and sending us the [model withdrawal form](#).

OpenAI rights. We may take action to restrict, suspend, or terminate your access to our Services or close your account if we determine, acting reasonably and objectively:

- You breached these Terms, including our [Usage Policies](#).
- We must do so to comply with the law.
- Your use of our Services could cause risk or harm to OpenAI, our users, or anyone else.
- Your account has been inactive for over a year and you do not have a paid account.

Notice. If we terminate your account, we will make reasonable efforts to notify you in

advance so you can export your Content or your data from the Services, unless it is not appropriate for us to do so, we reasonably believe that continued access to your account will cause damage to OpenAI or anyone else, or we are legally prohibited from doing so.

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terminated your account in error, you can file an appeal with us by [contacting Support](#).

Our commitments to you

How we provide the Services. We commit to provide the Services to you with reasonable skill and care and to act with professional diligence. We do not promise to offer the Services forever or in their current form for any particular period of time.

Liability. Provided that we have acted with professional diligence, we do not take responsibility for loss or damage caused by us, unless it is:

- caused by our breach of these Terms or
- reasonably foreseeable at the time of entering into these Terms.

We do not take responsibility for loss or damage caused by events beyond our reasonable control. We do not exclude or limit our liability to you in any way where it would be unlawful for us to do so. You still have the full protections of the laws applicable to you.

Statutory rights. You have certain statutory rights that cannot be limited or excluded by a contract like these Terms or that you are legally entitled to, for example, by virtue of being a consumer. These Terms are in no way intended to affect or restrict those rights.

EEA consumer guarantee. If you are an EEA-based consumer, then EEA consumer laws

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legal guarantee, please [contact Support](#).

Dispute resolution

Concerns. If we have a dispute, we would first like to understand and try to address your concerns before any formal legal action. To share your concerns you can contact us through [this form](#).

Court. If we cannot resolve our dispute, you or we can go to your local courts.

EEA consumer alternative dispute resolution. If you reside in the EEA, you can also raise the dispute with an alternative dispute resolution body via the European Commission's Online Dispute Resolution (ODR) Platform, which you can access at <https://ec.europa.eu/consumers/odr>.

Copyright complaints

If you believe that your intellectual property rights have been infringed, please send notice to the address below or fill out [this form](#). We may delete or disable content alleged to be infringing and may terminate accounts of repeat infringers.

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OpenAI OpCo, LLC
1455 3rd Street
San Francisco, CA 94158
Attn: General Counsel / Copyright Agent

infringement must include the following information:

- A physical or electronic signature of the person authorised to act on behalf of the owner of the copyright interest;
- A description of the copyrighted work that you claim has been infringed upon;
- A description of where the allegedly infringing material is located on our site so we can find it;
- Your address, telephone number, and e-mail address;
- A statement by you that you have a good-faith belief that the disputed use is not authorised by the copyright owner, its agent, or the law; and
- A statement by you, that the above information in your notice is accurate and, under penalty of perjury, that you are the copyright owner or authorised to act on the copyright owner's behalf.

General terms

Assignment. You may not assign or transfer any rights or obligations under these Terms. We may assign or transfer our rights or obligations under

these Terms to any affiliate or subsidiary or any successor in interest of any business associated with our Services. If we do, any rights you have as a consumer will not be affected. If you are not satisfied, you have the right to terminate your relationship with OpenAI and stop using our Services at any time.

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are continuously working to develop and improve our Services. We may update these Terms or our Services accordingly from time to time. For example, we may make changes to these Terms or the Services due to:

- Changes to the law or regulatory requirements.
- Security or safety reasons.
- Circumstances beyond our reasonable control.
- Changes we make in the usual course of developing our Services.
- To adapt to new technologies.

We will give you at least 30 days advance notice of changes that materially adversely impact you and the date that they will come into force either via email or an in-product notification. Any changes will only apply to our relationship going forward. If you do not agree to the changes, you must stop using our Services.

Delay in enforcing these Terms. If we or you delay enforcing a provision of these Terms, either of us can still enforce it later, and it will not prevent us or you from taking steps against the other at a later date. If any part of these Terms is determined to be invalid or unenforceable, it will not affect the

enforceability of any other part of these Terms.

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Trade controls. You must comply with all applicable trade laws, including sanctions and export control laws. Our Services may not be used in order for the benefit of, or exported or re-exported to (a) any U.S. embargoed country or

under applicable trade laws. Our Services may not be used for any end use prohibited by applicable trade laws, and your Input may not include material or information that requires a government licence for release or export.

Governing law. The law of the jurisdiction where you are a resident will govern these Terms.

Breach of contract. If you reside in the United Kingdom, you may have the right to bring a claim for breach of contract if we take certain actions—against your Content or your account—that are in breach of these Terms.

Business use of the Services addendum

Commercial and business use. If you use our Services for commercial or business use, the following terms apply. In the event of a conflict between this ***Business Use of the Services Addendum*** and the rest of these Terms, this Addendum shall take precedence.

Limitation of liability. NEITHER WE NOR ANY OF OUR AFFILIATES OR LICENSORS WILL BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR EXEMPLARY DAMAGES, INCLUDING DAMAGES FOR LOSS

OF PROFITS, GOODWILL, USE, OR DATA OR OTHER LOSSES, EVEN IF WE HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. OUR AGGREGATE LIABILITY UNDER THESE TERMS WILL NOT EXCEED THE GREATER OF THE AMOUNT YOU PAID

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LIABILITY AROSE OR ONE HUNDRED DOLLARS (\$100). THE LIMITATIONS IN THIS SECTION APPLY ONLY TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW.

Some countries and states do not allow the disclaimer of certain warranties or the limitation of certain damages, so some or all of the terms above may not apply to you, and you may have additional rights. In that case, these Terms only limit our responsibilities to the maximum extent permissible in your country of residence.

OPENAI'S AFFILIATES, SUPPLIERS, LICENSORS, AND DISTRIBUTORS ARE INTENDED THIRD PARTY BENEFICIARIES OF THIS ADDENDUM.

Indemnity. If you are a business or organisation, to the extent permitted by law, you will indemnify and hold harmless us, our affiliates, and our personnel, from and against any costs, losses, liabilities, and expenses (including attorneys' fees) from third party claims arising out of or relating to your use of the Services and Content or any violation of these Terms.

Governing law (business use). California law will govern these Terms except for its conflicts of laws principles. All claims arising out of or relating to these Terms will be brought exclusively in the federal or state courts of San Francisco, California.

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